

STATE OF MICHIGAN
IN THE 60th DISTRICT COURT

ANDREW PIGORS

File No. 25186592GC

Plaintiff/Counter-Defendant,

Hon.

v.

SHADY OAKS MHP, LLC

Defendant/Counter-Plaintiff.

Andrew J. Pigors
Pro Per
1977 Whitehall Rd., Lot 17
Muskegon, MI 49445

Law Offices of Aaron D. Cox, PLLC
Aaron D. Cox (P69346)
Elizabeth E. Ellison (P82098)
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**DEFENDANT/COUNTER-PLAINTIFF'S ANSWER TO PLAINTIFF'S FIRST
AMENDED COMPLAINT**

Shady Oaks MHP, LLC ("Shady Oaks") by and through its undersigned counsel, states in
Answer to Plaintiff's First Amended Complaint as follows:

1. Admitted.
2. Admitted.
3. Shady Oaks denies the allegation as it is false.
4. Shady Oaks denies the allegation as it is false.
5. Shady Oaks is without sufficient information upon which to form a belief, can neither admit nor deny the allegation contained therein, and therefore leaves Plaintiff to his proofs.
6. Admitted.

7. Shady Oaks denies the allegation as it is false.
8. Shady Oaks denies the allegation as it is false.
9. Shady Oaks denies the allegation as it is false.
10. Shady Oaks denies the allegation as it is false.
11. Shady Oaks denies the allegation as it is false.
12. Shady Oaks denies the allegation as it is false.
13. Shady Oaks denies the allegation as it is false.
14. Shady Oaks denies the allegation as it is false.
15. Shady Oaks denies the allegation as it is false.

Due to Plaintiff's failure to comport his Amended Complaint to the Michigan Court Rules, Shady Oaks further asserts a general denial of any wrongdoing or liability under any theory of recovery.

Shady Oaks therefore requests that this Court dismiss Plaintiff's First Amended Complaint with prejudice and award it such court costs and attorney's fees wrongfully incurred in defending this frivolous action.

Dated: February 19, 2025

Respectfully submitted:
/S/ Aaron D. Cox, Esq.
By: Aaron D. Cox (P69346)
Law Offices of Aaron D. Cox, PLLC
Attorney for Shady Oaks

AFFIRMATIVE DEFENSES

1. Plaintiff has failed to state a claim upon which relief can be granted.
2. Plaintiff's claims are barred by the express language set forth in the contract he relies upon.
3. Plaintiff's claims are barred where there are no contractual duties imposed upon Shady Oaks that have been breached as alleged in Plaintiff's complaint.

4. Plaintiff has failed to plead fraud with particularity as required by Michigan law and court rules.
5. Plaintiff's claims are barred by the economic loss doctrine where tort claims are barred where they arise out of an express contractual agreement between the parties.
6. Plaintiff's claims are barred to the extent that Shady Oaks is entitled to set off for Plaintiff's unpaid rental obligations.
7. Plaintiff's claims are barred to the extent he failed to mitigate any damages he alleges.
8. Plaintiff's claims are barred by the first breach rule where he breached his contract by failing to pay the contractual lease charges when due.
9. Shady Oaks reserves its right to amend its affirmative defenses as the court rules permit or as justice requires.

Dated: February 19, 2025

Respectfully submitted:
/S/ Aaron D. Cox, Esq.
By: Aaron D. Cox (P69346)
Law Offices of Aaron D. Cox, PLLC
Attorney for Shady Oaks

CERTIFICATE OF SERVICE

The undersigned certifies that a copy of this document was served upon the clerk of the court and parties of record by first-class mail on the date set forth below.

Dated: February 20, 2025

Respectfully submitted:

/S/ Aaron D. Cox, Esq.
By: Aaron D. Cox (P69346)
Law Offices of Aaron D. Cox, PLLC
Attorney for Shady Oaks